



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Connor White

Subject: UDC-24-60 | Lot 1, Block 1, Green Subdivision, 4th Filing

Date: April 22, 2024

Background:

The item for consideration is an *Outside User Agreement*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction 4/22/2024
- Public Services Committee 5/7/2024
- Consideration 5/13/2024

Attachments:

1. Resolution
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING WATER AND/OR SANITARY SEWER SERVICE, BY OUTSIDE USER AGREEMENT, FOR ROBERT GRANDPRE, FOR THE PROPERTY AT LOT 1, BLOCK 1, GREEN SUBDIVISION, 4TH FILING, LARAMIE COUNTY, WYOMING (EAST OF RIDGE ROAD AND NORTH OF AND ADJACENT TO GREEN COURT)."

WHEREAS, Robert GrandPre is the owner of the property in Laramie County, Wyoming, more specifically described as Lot 1, Block 1, Green Subdivision, 4th Filing, Laramie County, Wyoming;

WHEREAS, Robert GrandPre ("the Applicant") submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for water and/or sanitary sewer services outside of the corporate limits of the City of Cheyenne for the above-referenced properties;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the applications for water and/or sanitary sewer services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the application submitted by the Applicant to BOPU for water and/or sanitary sewer services outside of the corporate limits of the City of Cheyenne for the property described as Lot 1, Block 1, Green Subdivision, 4th Filing, Laramie County, Wyoming, is hereby approved.

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s).

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



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Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

APRIL 22, 2024

STAFF REPORT

FILE: PUDC-24-60: Lot 1, Block 1, Green Subdivision, 4th Filing – Outside User Agreement

REQUEST: An outside user agreement for the provision of water and sewer to a property outside City limits for 5000 gallons per month.

LOCATION: East of Ridge Road and north of and adjacent to Green Court.

APPLICANT: Robert GrandPre

AGENT: Robert GrandPre

OWNERS: Robert GrandPre

PREPARED BY: Connor White, Planner II



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

The applicant is requesting connection to BOPU water and sanitary sewer services for property outside City limits at an estimated amount of 5000 gallons per month. This property is in a County pocket, which already has BOPU water and sanitary sewer infrastructure and multiple pre-existing outside user agreements.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	MR (Medium-density Residential)	Vacant
North	Urban Residential	MR	Vacant
South	Urban Residential	MR	Vacant
East	Urban Residential	MR	Single-family Residential
West	Mixed-use Commercial	County Mixed-use	Single-family Residential

The property is currently zoned MR Medium-density Residential in the County.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Population served
- Considerations on the effect on future annexation(s)
- Fiscal cost/benefit to the City and the BOPU
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The BOPU already has infrastructure adjacent to this site. The proposed use of the property is residential, and the request is to allow a new home to be built. The area has many outside user agreements already and the size, shape, and use of this parcel would not prevent or hinder future annexations of either this parcel or surrounding land. This property is within a county pocket which the City will annex in the coming years.

Property tax would increase, but the City would not have any income from the property tax in the area. The BOPU may charge a higher rate for outside users and the BOPU infrastructure is already in place – so this agreement would likely be a net benefit to BOPU. City police, fire, and sanitation services are already within this area as this is a county pocket, so if this parcel were to come into City limits by itself, it would likely result in a net zero.

The Comprehensive Plan designates this area as Urban Residential – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, the following comments were received:

- The property is within a County pocket and is anticipated to be annexed within the next few years, but as an independent parcel, is not eligible for annexation. Approval of this OUA should be with the mutual understanding the property will be annexed in the near future.

CONCLUSION:

Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement.

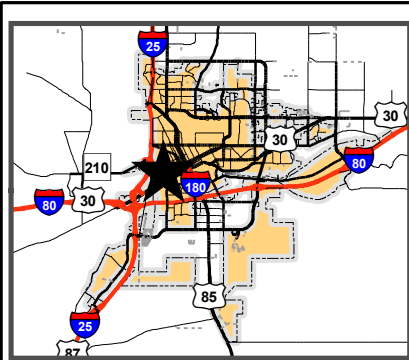
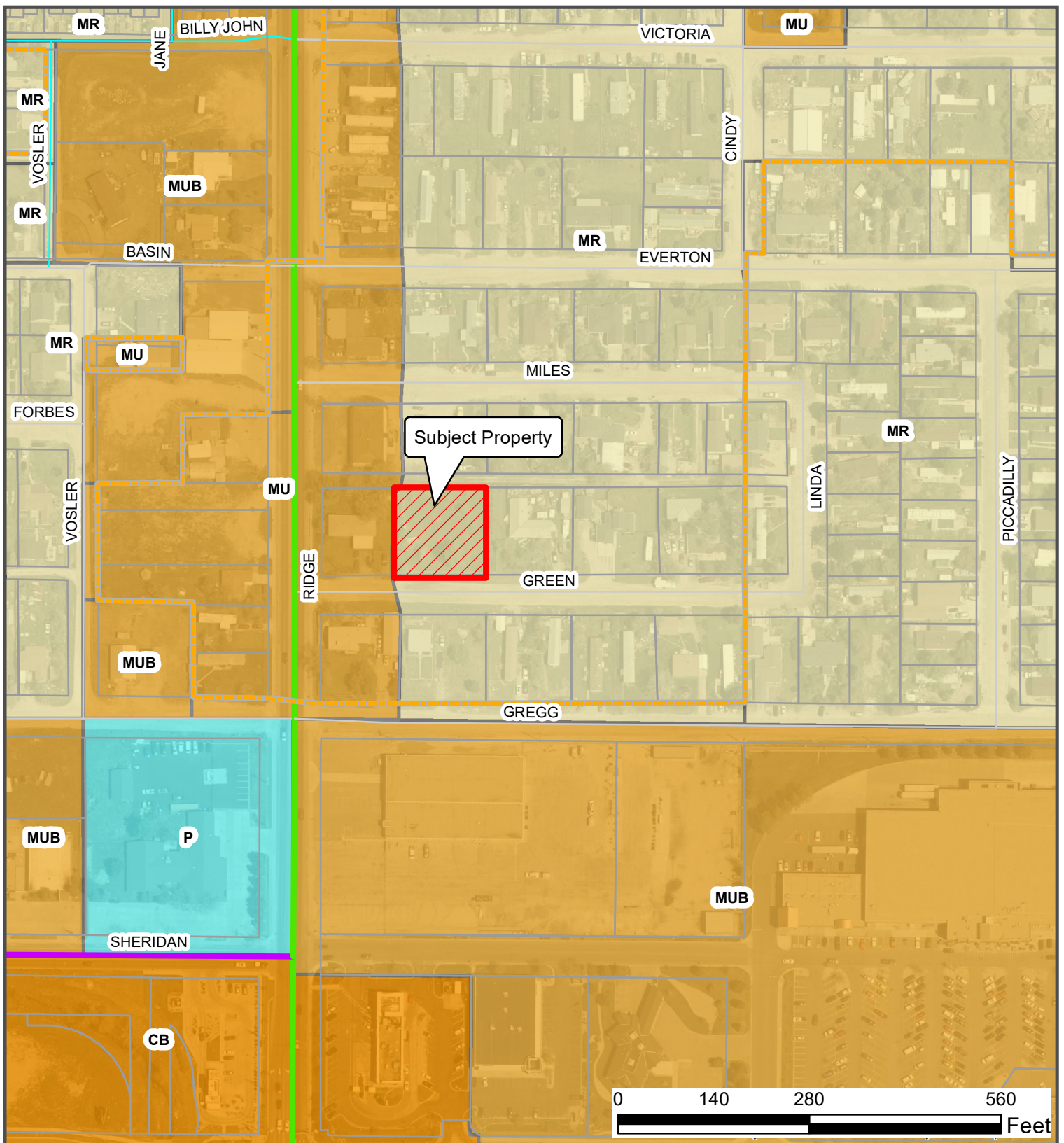
The proposed outside user agreement is within a county pocket, has ready access to BOPU infrastructure, will not adversely affect BOPU's capacity, and would not adversely affect the City's ability to annex the area in the future.

STAFF RECOMMENDATION:

Staff recommends approval of the proposed outside user agreement.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Application
4. Applicant-submitted proposed site plan

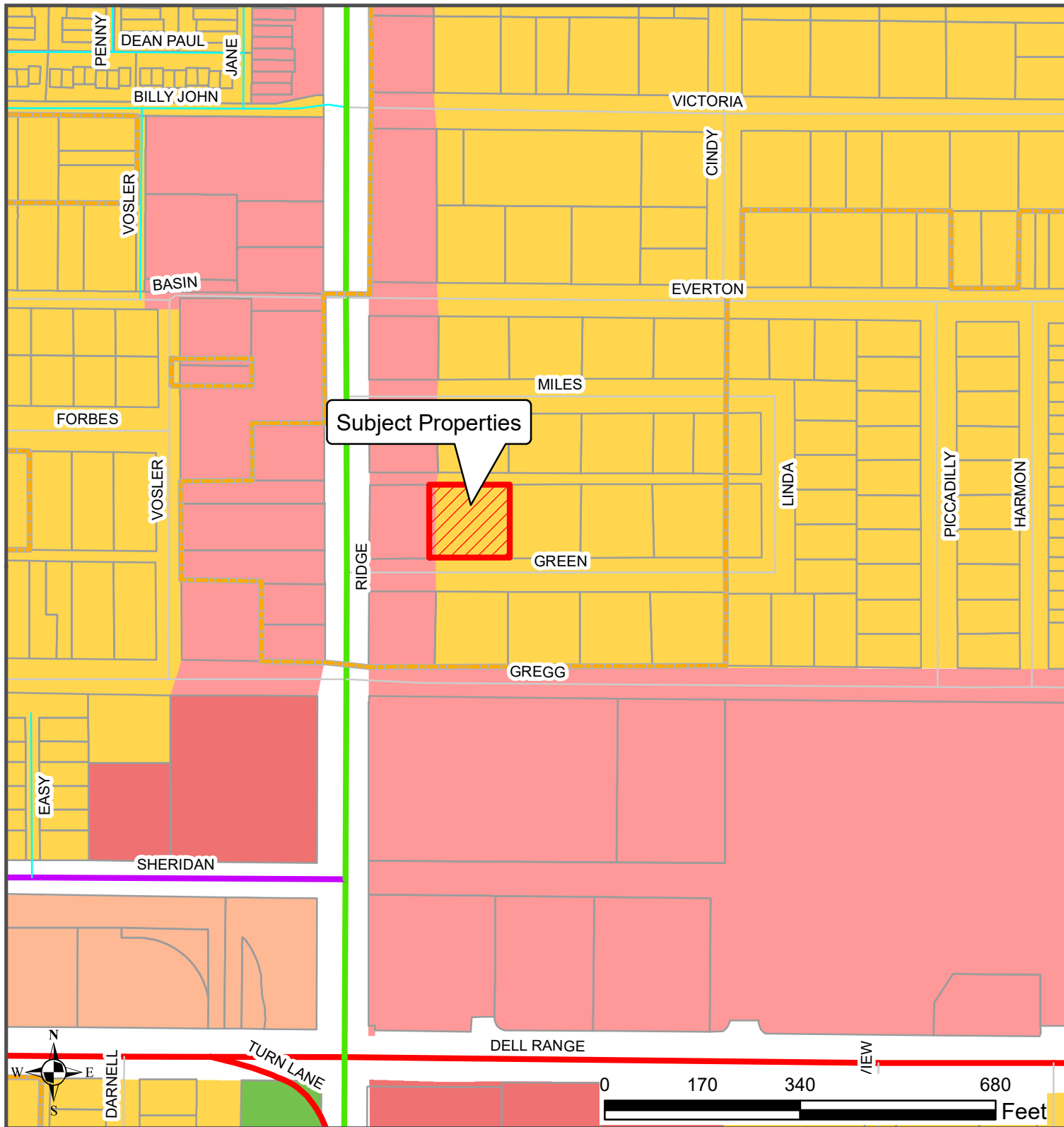


Attachment 1: Zoning Map PUDC-24-60

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-60

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

4/17/2024

PUDC-24-60

Outside User's

Agreement

Status: Active

Submitted On: 3/28/2024

Primary Location

0 GREEN CT

Cheyenne, WY 82009

Owner**Applicant**

Robert GrandPre

307-630-1960

grandprec@aol.com

 2611 Summit Dr.
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Written Statement* ?

This application is intended for an outside user's agreement for a new single family residence located at: Green Subdivision, 4th Filing, Lot 1, Block 1

I understand that I may not be eligible for an Outside User's Agreement if the property is close to current City limits.*



Number of connections to the BOPU system proposed*



1

Dwelling units served* ?

1

Anticipated jobs created* ?

0

Review Criteria

BOPU has the capacity to serve.*



The connection(s) proposed have a logical layout.*



Effect of population served (employees or residents).*



Serving the property will not be detrimental to the City's ability to annex in the area.*



The anticipated financial impact to the City and BOPU. This is more than the direct costs or payments, and will include effects like property taxes, sales taxes, maintenance costs, etc.*



The Comprehensive Plan's anticipated use patterns for the area.*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



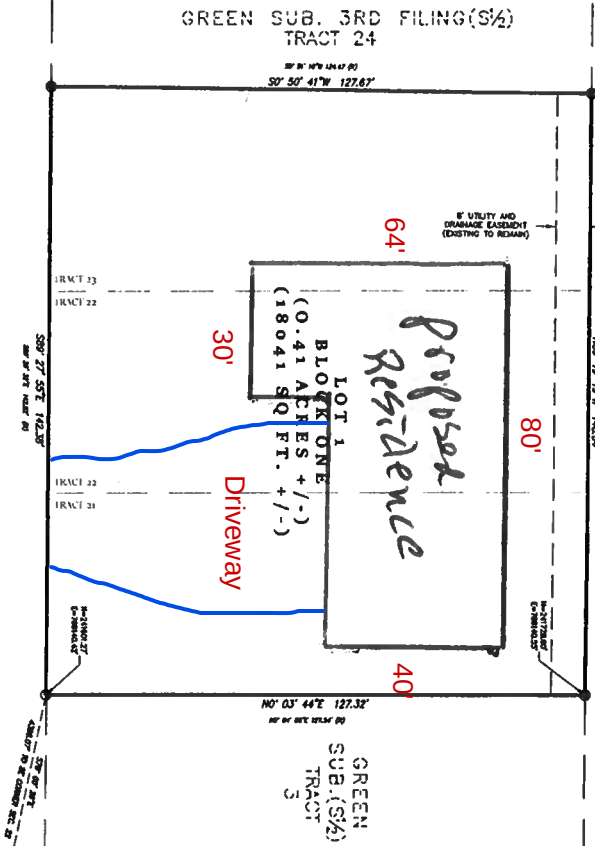
Robert A. GrandPre

Mar 28, 2024

GREEN SUBDIVISION (S/A)

ALLEY (16' PUBLIC R/W)

80' 12' 37" 145.64'

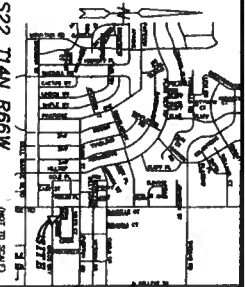


Setbacks:
5' sides
20' front and back
all exceeded

GREEN COURT (60' RW)

TRACT 7
GREEN SUBDIVISION (S/A)

VICINITY MAP



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, a Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision, and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

FILING RECORD

RECORDED 8/13/2023 AT 4:08 PM REC 13 REC 47
Office: Laramie, WY 82001
S22 T14N R66W



DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: Robert A. Jones, owner in fee simple of Tracts 21, 22 and 23, Green Subdivision, 3rd Filing.
Here, and does hereby declare the dedication of said land as it appears on this plat, to be the free and open use and enjoyment of the public.
Robert A. Jones

OWNER ACKNOWLEDGEMENT

The foregoing instrument was acknowledged before me this 3rd day of August 2023, by Robert A. Jones, owner in fee simple of Tracts 21, 22 and 23, Green Subdivision, 3rd Filing, and does hereby declare the dedication of said land as it appears on this plat, to be the free and open use and enjoyment of the public.
Notary Public, Laramie County, Wyoming
By Commission Expires: April 30, 2028

NOTES

1. BASIS OF BEARINGS: WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET, GRID DISTANCES, COMBINATION FACTOR = 0.9999999734.
2. ALL UNMENTIONED TRACT CORNERS, ANGLE POINTS AND CURVE POINTS TO BE MONUMENTED WITH A 1/2" ALUMINUM CAP STAMPED SSS PLS 5910" SET W/ 1/2" REBAR.
3. NO PORTION OF THIS PLAT FALLS WITHIN A FEMA 100-YEAR FLOOD PANEL PER FEMA PANEL PRODUCTIONS, DATED JANUARY 17, 2007.
4. THIS SUBDIVISION FALLS WITHIN THE JURISDICTION OF LARAMIE COUNTY AND INDIANS TO THE SOUTHWEST CORNER OF GREEN COURT AND 3RD SERVICES VA OUTSIDE USOR AGREEMENT (GMA).
5. CMP - SUBJECT PROPERTY DOES NOT FALL WITHIN THE CMP.
6. IT IS THE INTENT OF THIS DEED TO VACATE ALL OF TRACTS 21, 22 AND 23, GREEN SUBDIVISION 3RD FILING, INCLUDING THE EASEMENTS PLATTED THEREON.
7. EXISTING EASEMENTS TO REMAIN AS SHOWN, (IF UTILITY AND DRAINAGE EASEMENT)

LEGEND

- FOUND ALUMINUM CAP
- STAMPED SSS PLS 5910"
- FOUND 1/2" IRON PIPE

Description: 32x24x4
The State of Wyoming } ss
The County of Laramie } ss
The instrument was filed for record at 4:08 PM on the 13th day of August 2023, and duly recorded in book 13, on page 471.
Notary Public
Jeffrey B. Jones

APPROVALS

Approved by the Board of Commissioners of Laramie County, Wyoming this 13th day of July 2023.

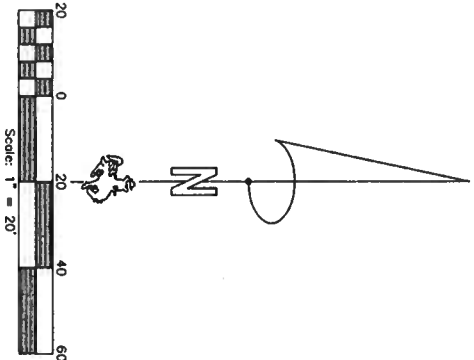
ATTEST: Robert A. Jones
County Clerk

Approved by the Laramie County Planning Director
13th day of July 2023.

John Arnold, Planning Director, Laramie County, Wyoming

Approved by the Director of Laramie County Public Works this 13th day of July 2023.

By: [Signature]
Marty Bennett, Director of Public Works, Laramie County, Wyoming



GREEN SUBDIVISION 4TH FILING

AN ADMINISTRATIVE REPEAT OF
TRACT 21, 22 & 23,
GREEN SUBDIVISION 3RD FILING,
SITUATE IN THE SW1/4 OF
SECTION 22, T14 N, R66 W, OF THE 6th P.M.,
LARAMIE COUNTY, WYOMING
PREPARED JUNE 2023



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
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